

STATE OF NEW YORK

10500--A

IN ASSEMBLY

March 6, 2026

Introduced by M. of A. SIMONE -- read once and referred to the Committee on Economic Development -- reported and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the alcoholic beverage control law, in relation to the exemption of certain parcels of land from licensing restrictions prohibiting manufacturers, wholesalers and retailers of alcoholic beverages from sharing an interest in a licensed premises or to sell at retail for consumption on the premises

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph (a) of subdivision 1 of section 101 of the alcoholic beverage control law is amended by adding a new subparagraph (xix) to read as follows:

(xix) any condominium unit in the Borough of Manhattan, City, County and State of New York, bounded and described as follows:

The Condominium Unit (the "Unit") known as the "Performing Arts Unit" in the AOL Time Warner Center Condominium, said Unit designated and described as the Performing Arts Unit in the Declaration Establishing a Plan for Condominium Ownership of said premises (as amended, the "Declaration") pursuant to Article 9-B of the Real Property Law of the State of New York, dated as of July 22, 2003 and recorded in the New York County Office of the Register of the City of New York (the "Register's Office") on July 23, 2003 as CRFN # 2003000251697, as amended by First Amendment to Declaration dated as of August 19, 2003 and recorded in the Register's Office on August 26, 2003 as CRN # 2003000307974, and also designated as Tax Lot 1003 in Block 1049 of Section 4 of the Borough of Manhattan on the Tax Map of the Real Property Assessment Department of the City of New York (the "Assessment Department") and on the floor plans of said building, certified by Ismael Leyva Architects P.C., on March 31, 2003, and filed with the Assessment Department on June 27, 2003 as Condominium Plan No. 1311, and also filed in the Register's Office on July 23, 2003, as Condominium Plan No. 1311, as CRN # 2003000251698, as amended by plans certified by Ismael Leyva Architects

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD14220-04-6

1 P.C., on August 26, 2003, and filed with the Assessment Department on
2 August 26, 2003, as Condominium Plan No. 1311-A, and also filed in the
3 Register's Office on August 26, 2003, as CRN # 2003000307975.

4 § 2. Paragraph (a) of subdivision 13 of section 106 of the alcoholic
5 beverage control law is amended by adding a new subparagraph (xxiv) to
6 read as follows:

7 (xxiv) any condominium unit in the Borough of Manhattan, City, County
8 and State of New York, bounded and described as follows:

9 The Condominium Unit (the "Unit") known as the "Performing Arts Unit"
10 in the AOL Time Warner Center Condominium, said Unit designated and
11 described as the Performing Arts Unit in the Declaration Establishing a
12 Plan for Condominium Ownership of said premises (as amended, the "Decla-
13 ration") pursuant to Article 9-B of the Real Property Law of the State
14 of New York, dated as of July 22, 2003 and recorded in the New York
15 County Office of the Register of the City of New York (the "Register's
16 Office") on July 23, 2003 as CRFN # 2003000251697, as amended by First
17 Amendment to Declaration dated as of August 19, 2003 and recorded in the
18 Register's Office on August 26, 2003 as CRN # 2003000307974, and also
19 designated as Tax Lot 1003 in Block 1049 of Section 4 of the Borough of
20 Manhattan on the Tax Map of the Real Property Assessment Department of
21 the City of New York (the "Assessment Department") and on the floor
22 plans of said building, certified by Ismael Leyva Architects P.C., on
23 March 31, 2003, and filed with the Assessment Department on June 27,
24 2003 as Condominium Plan No. 1311, and also filed in the Register's
25 Office on July 23, 2003, as Condominium Plan No. 1311, as CRN #
26 2003000251698, as amended by plans certified by Ismael Leyva Architects
27 P.C., on August 26, 2003, and filed with the Assessment Department on
28 August 26, 2003, as Condominium Plan No. 1311-A, and also filed in the
29 Register's Office on August 26, 2003, as CRN # 2003000307975.

30 § 3. This act shall take effect immediately.